

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500906	ARREOLA VS JOHNSTON	MOTION TO COMPEL EDGAR ARREOLA'S DEPOSITION

Tentative Ruling: Defendants Halo Construction Inc. and Evan M. Johnston's Motion to Compel Deposition is denied.

While the history of this discovery matter reflects significant delays, the sequence of events immediately preceding the filing demonstrates that no justiciable dispute existed at the time the Court's jurisdiction was invoked.

The meet-and-confer process is a fundamental prerequisite of California discovery law, designed to conserve judicial resources by requiring counsel to resolve logistical and scheduling conflicts through informal dialogue. Defense counsel declares she attempted to contact Plaintiff's counsel on July 9, July 10, and July 15, 2026, to discuss the repeated nonappearances.

The evidence demonstrates a critical turning point on July 15, 2026. On that day, an assistant from Plaintiff's counsel's office contacted Defense counsel, and the parties reached a mutual, successful agreement to reschedule the deposition for August 26, 2026.

Having successfully reached an agreement on July 15 to resolve the scheduling conflict, Defense counsel nevertheless executed the current Motion to Compel that same day and filed it on July 16, 2026. In her supporting declaration, Counsel offers a "placeholder" rationale for this filing, stating: "given that this pattern of conduct has been consistent with Plaintiff's past behavior, Defense counsel will be moving forward with filing a Motion to Compel. If Plaintiff appears for the deposition on the agreed-upon date of August 26, Defense counsel will move to take the Motion off calendar." This statement constitutes a direct admission in a sworn declaration that the motion was filed for the purpose of leverage, notwithstanding a pre-filing agreement.

A discovery motion is only appropriate when a dispute is "ripe"—meaning judicial intervention is the necessary and only remaining remedy. Under Code of Civil Procedure ("CCP") § 2025.450(b)(2) and § 2016.040, a motion to compel must be accompanied by a declaration showing a reasonable and good-faith attempt at an informal resolution. As established in *Leko v. Cornerstone Building Inspection Serv.* (2001) 86 Cal.App.4th 1109, 1124, the law mandates that counsel attempt to resolve such issues by rescheduling. (Also, under CCP § 2023.020, the court shall impose a monetary sanction on any party or attorney who fails to confer in good faith, regardless of whether they ultimately win or lose the underlying motion to compel.)

The July 15, 2026, rescheduling agreement is dispositive. Because the parties successfully resolved the date conflict *before* the motion was filed on July 16, there was no actual, existing discovery dispute for the Court to adjudicate. The legal requirement for a "good faith attempt" at informal resolution implicitly requires that if such an attempt is *successful*, no motion shall be filed.

The Court finds that Defense counsel's declaration of meet and confer was essentially made in bad faith. By acknowledging a resolution had been reached on July 15 while simultaneously filing a motion on July 16 to compel that same appearance, Defendants sought to use the Court's calendar as a tool for intimidation and leverage. Preemptive or "placeholder" motions are an improper discovery practice and place an unnecessary burden on judicial resources. Defense counsel is formally admonished, the preemptive filing of this motion after a resolution had already been achieved, or the use of the Court's jurisdiction to "police" potential future non-compliance is an abuse of the discovery process. (CCP §2023.010.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505749	SAYRE VS SUDWEEKS CONSTRUCTION, INC.	MOTION TO COMPEL FURTHER RESPONSE TO REQUEST FOR PRODUCTION, SET ONE FROM DEFENDANT SUDWEEKS CONSTRUCTION FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Tentative Ruling: Plaintiff's Motion to Compel Further Response to Request for Production of Documents (Set One) No. 17 is granted; Defendant Sudweeks Construction, Inc. must produce further, verified, Code-compliant responses, without objection, to Request for Production of Documents No. 17 within 30 days of this order.

As to Sanctions, Plaintiff is awarded AGAINST Defendant Sudweeks in the reasonable reduced amount of \$1,560.00 (3 hours at \$550/hour and filing fees), payable within 30 days.

A party may move to compel a further response to an RFP where the responding party's statement of compliance is incomplete, a representation of inability to comply is inadequate, or "an objection in the response is without merit or too general." (CCP § 2031.310(a).) The moving party must "set forth specific facts showing good cause justifying the discovery sought by the demand." (CCP § 2031.310(b)(1).) Once the moving party makes a fact specific showing of relevance, good cause is established, and the burden shifts to the responding party to justify each objection. (*Kirkland v. Sup. Ct.* (2002) 95 Cal.App.4th 92, 98.)

Plaintiff has met his threshold burden of showing good cause. RFP No. 17 targets the very documents that establish the elements of Plaintiff's prevailing wage claims—*i.e.*, the contract coverage requirement under Lab. Code §§ 1771 and 1774, the bid advertisement date that fixes the applicable prevailing wage determination, and trade classification and damages. That is a "fact-specific showing of relevance," which satisfies the good cause requirement and shifts the burden to Sudweeks to justify each of its objections. (*Kirkland, supra*, 95 Cal.App.4th at 98.)

Sudweeks has not carried that burden. Its March 2, 2026 response consisted entirely of boilerplate objections, including relevance, overbreadth, third-party privacy,